

SUPREME COURT STATE OF NEW YORK
COUNTY OF BRONX X

MICHAEL ORTIZ

Plaintiff,

ECF
COMPLAINT

Index No.

Jury Trial Demanded

CITY OF NEW YORK, POLICE OFFICER KAROLINA SCOTT
OF THE 52nd POLICE PRECINCT, BADGE NO. 483, IN HER
INDIVIDUAL, AND OFFICIAL CAPACITY, POLICE OFFICER
PINNOCK, 52nd POLICE PRECINCT, IN HIS INDIVIDUAL AND OFFICIAL
CAPACITY, POLICE OFFICER LASPINA OF THE 52nd
POLICE PRECINCT, IN HIS INDIVIDUAL AND OFFICIAL
CAPACITY.

Defendants,

X

1. Plaintiff, MICHAEL ORTIZ, by his attorney, Welton K. Wisham, of the Law
Office of Welton K. Wisham, alleges upon information and belief the following against
Defendants, The City of New York, New York City Police Officers, Karolina Scott, Pinnock and
Officer Laspina all of whom are believed to be affiliated with the fifty second (52nd) police
precinct in the Bronx, New York.

JURISDICTION

2. This Court has personal jurisdiction over the defendants because the defendants
transacted business within the State of New York within the meaning of CPLR Section 302(a)
(1), and causing injury to the Plaintiff within the State of New York, Bronx County. This Court
has concurrent Jurisdiction to hear Plaintiff's federal causes of action under 42 U.S. C. Section 1983.

VENUE

3. The Plaintiff selects Bronx County as the venue for which this action is commence. Venue is predicated on Plaintiff's residence in Bronx, New York, as set forth under McKinney's Consolidated Laws of New York Civil Practice Law and Rules Section 503(a).

PARTIES

4. Plaintiff Michael Ortiz is a citizen of the United States and at all times here relevant resided in Bronx, County, and State of New York.

5. That at all times relevant herein, Defendants Police Officers Karolina Scott, Pinnock, and Laspina , were duly appointed as police officers assigned to the 52nd police precinct, Bronx, New York, and were acting within the scope of their employment as employees of the New York City Police Department on the date of this incident.

6. That the Defendant police officers named herein, upon information and belief, are current members of the New York City Police Department assigned to the 52nd police precinct located in Bronx, New York.

7. That the individual police officers involved in the incident underlying this lawsuit were at all times mentioned in this complaint, agents, servants, and employees, acting within the scope of their employment by Defendant, City of New York, and were duly appointed police officers in the New York City Police Department acting within their individual, and official capacity, and under color of law, that is under color of law of the Constitution, statutes, laws, charter, ordinances, rules, regulations, custom and usages of the State of New York, and the City of New York.

8. That the Defendant, City of New York, is a municipal corporation within the State of New York.

9. That Pursuant to Section 431 of its Charter, the City of New York has established and maintains the New York City Police Department as a constituent department or agency.

10. That at all times relevant hereto, the City of New York employed the defendant Police Officers involved in this incident.

11. At all times relevant hereto, Defendant City of New York, acting through the New York Police Department (or "NYPD"), was responsible for the policies, practices, supervision, implementation, and conduct of the Defendant police officers.

12. That at all times relevant hereto, Defendant City of New York, acting through the New York Police Department (or "NYPD"), was responsible for the New York City Police Department practices, and procedures, including the appointment, training, supervision, discipline and retention of the Defendant officers complained of herein.

13. That at all times relevant hereto, Defendant City of New York was responsible for enforcing the rules of the NYPD, and for ensuring that on-duty NYPD personnel obey the laws of the United States and of the State of New York.

14. That Defendant officer Karolina Scott was assigned to the 52nd police precinct located in the Bronx, New York and was, at all times here relevant, was acting in the capacity of an agent, servant and employee of the City of New York, under color of state law.

15. That officer Scott was responsible for supervising the unlawful stop, search and frisk of Plaintiff Ortiz on December 28, 2017.

16. That officer Scott is sued in her individual and official capacity for violating Mr. Ortiz's constitutional rights as more fully set forth herein.

17. That officer Pinnock and LaSpina also participated in the unlawful stop, search and frisk of Plaintiff Ortiz on or about December 28, 2017.

18. That police officers Scott, Pinnock and LaSpina are each sued in their individual and official capacity for violating Plaintiff's constitutional rights as more fully set forth herein.

19. At all times here mentioned Defendant police officers were acting under color of state law, to wit, under color of the statutes, ordinances, regulations, policies, customs and usages of the City, and State of New York.

PRELIMINARY STATEMENT

20. This is a civil rights action in which Plaintiff seeks relief for the violation of his civil rights secured under the provisions of 42 U.S.C Section 1983, and under the Fourth, and Fourteenth Amendments to the Constitution of the United States and under the Constitution of the State of New York, Article I Section 12.

FACTUAL ALLEGATIONS

21. That on or about December 28, 2017, at approximately 4:00 p. m. Mr. Ortiz walking down a public street with his cousin on 183rd Street, near Davidson Ave., Bronx, New York when he was observed by the Defendant police officers walking into a publicly owned building at 2344 Davidson Ave, Bronx, New York.

22. That officers Scott, Pinnock and LaSpina immediately walked into the building surrounded the Plaintiff and demanded to know what Mr. Ortiz was doing inside the building.

23. That officers were informed that Ortiz was visiting a friend who resided inside the apartment building.

24. That Officer Scott placed her hands inside Plaintiff's pants pocket without consent.

25. That Plaintiff Ortiz informed officer Scott that he does not consent to the search.

26. Officer Pinnock joined officer Scott in searching the Plaintiff by putting his hands inside Plaintiff's pants pocket.

27. Officer Pinnock pulled out a one dollar bill from Plaintiffs pocket.

28. That Mr. Ortiz asked the officers what's going on?

29. That officer Scott responded by saying " Shut the fuck up before I strip search you butt ass naked outside in front of everyone".

30. That officers Scott, Pinnock, and LaSpina then arrested Mr. Ortiz by placing his hands behind his back whereby Plaintiff was handcuffed.

31. Michael Ortiz had not been engaged in any unlawful activity at the time of the incident complained of herein.

32. Ortiz was then taken to the 52nd police precinct in the Bronx, New York where he fingerprinted, photographed and was subjected to an unlawful strip search without the required individualized reasonable suspicion mandated by the Fourth Amendment and under New York State Law.

33. Plaintiff was charged with direct sale of narcotics and that the officers had marked money allegedly given by one of the Defendant officers.

34. Mr. Ortiz was not engaged in the sale of narcotics for which he was unlawfully arrested and charged.

35. That police officers in central booking informed Plaintiff Ortiz that the " Judge don't want to see, today's your lucky day"!.

36. That Plaintiff was incarcerated for twenty four (24) hours without legal justification.

37. That Mr. Ortiz had seen the Defendant officers prior to the December 28, 2018, incident who had threatened the Plaintiff by saying "you're going down, your outta here"!

38. That Mr. Ortiz demanded that his personal property which consisted of a cell phone and keys.

39. That the New York City Police Department employees refused to return Mr. Ortiz's house keys.

40. That Plaintiff was forced to call his girl friend to go to the police precinct to retrieve Plaintiff's keys.

41. That Plaintiff's girlfriend did in fact retrieve Plaintiff's keys from the 52nd police precinct.

42. That the New York City Police Department has a pattern and practice of stopping and frisking African American men without legal justification and that such practice was previously found to be unconstitutional in violation of the Fourth and Fourteenth Amendments.

43. That on August 12, 2013, the Honorable United States District Court Judge, Shira A. Scheindlin, held that the City of New York had in fact engaged in the unlawful stop and frisk of African American, and Hispanic males by targeting such group as to have created a policy and practice of which violated the Fourth and Fourteenth Amendment to the Constitution of the United States. **David Floyd et. al., v. City of New York**, et. al. 813 F. Supp. 417 (2011).

44. That the **Floyd** Court, held that the New York City Police Department was liable for violating Floyd's Fourth Amendment right to be free from unreasonable stop and frisk and searches without individualized reasonable suspicion. **Floyd v. City of New York**, et.al. 08 Civ. 1034.

45. The Honorable Judge Scheindlin held that the New York City Police Department had in fact senior officials of the NYPD within the City of New York were deliberately indifferent to officers conducting unconditional stops and frisks and that such practices were found to have been widespread that they had become the force of law.

46. That such practices continued are were in effect on December 28, 2017, when officers Scott, Pinnock, and LaSpina, engage in the illegal stop, frisk, and arrest of Plaintiff Michael Ortiz.

47. As a consequence thereof, Plaintiff has been injured.

48. That at all times during the events described herein, the Defendants were engaged in a joint venture and formed an agreement to violate Plaintiff's constitutionally protected rights.

49. That the Defendant officers assisted each other in performing the various unlawful actions described herein and lent their physical presence and support and the authority of their office and position of New York City police officers to each other during the stated events described herein by conducting an unlawful stop and frisk , and arrest without legal justification and without individualized articulated reasonable suspicion.

50. That the Defendant officers acted maliciously and with intent to violate Plaintiff's rights.

51. That as a direct and proximate result of the acts of Defendants, Plaintiff suffered injuries and damages:

52. That the Defendants violated Plaintiff's right to Due Process of Law under the Fourteenth Amendment to the Constitution of the United States.

53. That the Defendants violated Plaintiff's right to be free from unlawful search and seizures under the Fourth Amendment to the United States Constitution.

54. Mr. Ortiz was subjected to and suffered undue emotional trauma and suffering, including fear, embarrassment, humiliation, emotional distress, frustration, inconvenience, and anxiety.

55. That the Defendants officers' actions are part of a broader pattern of systemic abuse of police power that has become prevalent in this police precinct and most minority communities in violation of a Court order to cease and desist such unconstitutional practices.

56. That Defendant's abuse of their position in this incident is not just a violation of plaintiff's individual constitutional rights; it is a symptom of one cause of the defect in broader police to community relations.

57. That officers Scott, Pinnock, and LaSpina as well as the New York Police Department have a duty as servants of the law and the City of New York, to follow procedures that are put in place to protect the rights of all the citizens of the United States as outlined in the Constitution of the United States, including those of Plaintiff Michael Ortiz.

58. That the Defendant officers breached their duty to faithfully execute the responsibilities of their position and to protect the rights of Plaintiff Michael Ortiz.

59. That the City of New York and the NYPD failed their duty to properly supervise, train or discipline the individual Defendant officers.

60. That the unlawful action by the Defendant police officers' overly aggressive actions, puts the lives of citizens in jeopardy particularly the lives of black and Hispanic young men.

61. That according to Judge Scheindlin's decision in **Floyd**, "The NYPD practice of making stops that lack individualized reasonable suspicion has been so pervasive and persistent as to become not only a part of the NYPD's standard operating procedure, but a fact of daily life in some New York City neighborhoods. **Id** at 180.

62. That the Court in the Floyd case found that City of New York and the New York City Police Department violated the Fourteenth Amendments rights of minority through a " policy of " indirect racial profiling based on local criminal suspect data" **Id**. At 181.

63. That the City of New York acknowledged and defended the NYPD policy of conducting stops based on criminal suspect data of which race is a primary fact.” The NYPD implements this policy by emphasizing to officers the importance of stopping “ the right people.” In practice, officers are directed, sometimes expressly, to target certain racially defined groups for stops. ”Id.

64. That Plaintiff, Michael Ortiz was targeted and stop based on a discriminatory policy of stopping, and frisking, young men of color including black and Hispanic men.

65. That the Defendant officers intended to violate Plaintiff’s constitutional rights.

66. That the Defendants were motivated by a discriminatory purpose for which is forbidden under the Equal Protection Clause of the Fourteenth Amendment to the Constitution of the United States.

67. That the New York City Police Department carries out more stops and frisk where there are black and Hispanic residents thereby contravening the Fourth and Fourteenth Amendments to the United States Constitution.

68. That the City of New York has a custom of conducting stops and frisks with deliberate indifference to the constitutional deprivations caused by its employees, namely employees of the New York City Police Department.

69. That supervisors within the New York City Police Department routinely fail to monitor or review the productivity of its police officers.

70. That New York City Police Department supervisors fail to adequately ensure that its officers have made a proper record of a stop so that t it can be reviewed for its constitutionality. Floyd v. City of New York, et, al, 959 F.Supp.2d 540, 562 (S.D.N.Y.2013) (“Floyd Liability Order”).

FIRST CAUSE OF ACTION
AGAINST ALL DEFENDANTS PURSUANT TO 42 U.S.C SECTION 1983, FOR
VIOLATING PLAINTIFF'S RIGHTS UNDER THE FOURTH AMENDMENT TO THE
CONSTITUTION OF THE UNITED STATES

71. That the plaintiff repeats, reiterates and realleges each and every allegation contained in Paragraphs Numbered "1 through "70" with the same force and effect as though more fully set forth at length herein.

72. That at all times herein mentioned the Plaintiff, was unlawfully stopped, seized, detained, restrained, frisked and subjected to a humiliating body and cavity strip search on December 28, 2017, without probable cause or legal justification.

73. That the Defendants City of New York, New York City Police Commissioner James P. O'Neil, Police Officers Scott, Pinnock and LaSpina, have implemented, enforced, encouraged, and sanctioned a policy, practice and or custom of unlawfully stopping and frisking individuals without the constitutionally required and articulated, individualized reasonable suspicion.

74. That Mr. Ortiz was not engaged in unlawful criminal activity on the date and time that he was stopped by officers Scott, Pinnock and LaSpina.

75. Plaintiff was made to fear for his life as a result of the Defendant's wrongful and unconstitutional actions described and set forth herein.

76. That plaintiff suffered emotional pain, humiliation, and degradation, due to the Defendant's illegal, stop, frisk, search, seizure and confinement.

77. That the Defendants, their agents, servants and, or employees, intentionally, and without legal justification, including lack of probable cause, unlawfully, and unreasonably stopped and frisked Plaintiff without reasonable suspicion to have believed that Plaintiff was engaged in unlawful activity.

78. That the New York City Police Department practices and policies and constitutional abuses which led to Plaintiff's unlawful stop and frisk on or about December 28, 2017, were directly and proximately caused by policies , practices, and or customs devised , implemented , enforced, encouraged and sanctioned by the City of New York and by Police Commissioner O'Neil including (failure to adequately and properly train and or supervise the Defendant New York City police officers and (2) failure to properly and adequately monitor and discipline NYPD officers and (3) the overt and tacit encouragement and sanctioning of , and the failure to rectify the New York City Police Department's suspicionless stop and frisk practices.

79. That the Defendants, their agents, servants and, or employees, intentionally, and without legal justification, including lack of probable cause, unlawfully, and unreasonably searched, seized and detained the Plaintiff.

80. Mr. Ortiz suffered emotional distress, trauma, embarrassment, ridicule, scorn, and deprivation of his civil rights caused by the Defendant's police officers unlawful detention.

81. Defendants' unlawful actions were done willfully and knowingly with the specific intent to deprive Plaintiff of his constitutional rights.

82. That the Defendants have acted with deliberate indifference to Plaintiff's Fourth Amendment right to be free from unreasonable searches and seizures.

83. That as a direct and proximate result of the acts or omissions of each of the Defendants set forth herein, Mr. Ortiz's Fourth Amendment rights have been violated.

84. That the Defendants, acting under color of state law to deprive Plaintiff of his Fourth Amendment rights, are in violation of 42. U.S.C Section 1983, which prohibits the deprivation under color of state law of rights secured under the Constitution of the United States.

85. That the Defendant officers and the New York City Police Department intentionally targets blacks and Hispanics individuals for illegal stops and frisks in areas which are predominantly Black and Hispanic.

86. As consequence thereof, Plaintiff has been greatly injured.

SECOND CAUSE OF ACTION
PURSUANT TO 42. U.S.C. SECTION 1983 AGAINST ALL DEFENDANTS FOR THE VIOLATION OF THE EQUAL PROTECTION CLAUSE OF THE FOURTEENTH AMENDMENT TO THE CONSTITUTION OF THE UNITED STATES.

87. That plaintiff repeats, reiterates and realleges each and every allegation contained in Paragraphs Numbered “1” through “ 86”, with the same force and effect as though more fully set forth at length herein.

88. That at all time herein mentioned and upon information, and belief, the Defendant Police Officers were, and still are, members of the New York City police officer assigned to the Fifty second (52) police precinct located in the Bronx New York.

89. That at all time herein mentioned the defendant, City of New York, maintained, operated and controlled the Police Department City of New York.

90. That at all times hereinafter mentioned the police officers employed by the Defendant City of New York, were servants, agents, and/or employees of the defendant City of New York, and were acting within the scope of their employment.

91. That the defendants, their agents, servants, and/or employees, intentionally, and without legal justification, unlawfully, and unreasonably, stopped, and frisked and searched Mr. Ortiz on December 28, 2017, without individualized reasonable suspicion that Plaintiff had been or was involved in criminal activity.

92. That at all time herein mentioned, and based upon information and belief, Plaintiff Ortiz was falsely imprisoned, detained, restrained, stopped and searched by the individual Defendant police officers who were members of the New York City Police Department of the City of New York, who were agents, servants and/or employees of the defendant, City of New York, and who were acting under and within the scope of their employment at the time of the incident complained of herein.

93. That at all times herein mentioned, the Defendants intended to stop, search and frisk the Plaintiff without privilege of law.

94. That the City of New York through the New York City Police Department, Police Commissioner O'Neil and the Defendant police officers have implemented and enforced a policy, practice and or custom of stopping and frisking individuals including Mr. Ortiz, based solely on race and or national origin.

95. That the New York City Police Department has a de facto policy designed to stop and frisk black and Hispanic men without the requisite individualized reasonable suspicion required by the constitution.

96. As a direct and proximate result thereof, the New York City Police Department's policy, practice and or custom of allowing its members of the force to conduct suspicionless stops, searches and frisks violate the Equal Protection Clause of the Fourteenth Amendment to the Constitution of the United States.

97. That the NYPD's constitutional abuses were and are directly and proximately caused by practices and policies and or customs of the New York City Police Department which have been devised, implemented , enforced encouraged and sanctioned by the City of New York, Commissioner O' Neil, including (1) failure to adequately and properly train, and supervised

officers of the New York City Police Department, (2) failure to adequately and properly monitor and discipline the NYPD and its officers (3) encouraging and sanctioning of and failure to rectify the New York City Police Department's use of racial and or national origin in profiling and stopping and frisking minority individuals without the requisite individualized reasonable suspicion.

98. That the Defendants have all acted with deliberate indifference to Mr. Ortiz's Fourteenth Amendment right to be free from unlawful stops, frisks, and searches without the requisite individualized reasonable suspicion and free from such unlawful stops, frisks and searches based on race.

99. That as a direct and proximate result of the Defendants unlawful policies, practices and customs, Plaintiff Ortiz suffered severe emotional distress, trauma, humiliation, embarrassment, ridicule, scorn and deprivation of his civil rights, and freedom, under the Constitution of the United States.

100. That the stop, frisk and detention complained of herein of the Plaintiff by the Defendant police officers constituted a malicious act, and was a wanton and reckless degradation of the Plaintiff's liberty.

101. That the Defendants acted under color of state law in depriving Mr. Ortiz of his Fourteenth Amendment rights in violation of 42 U.S.C. Section 1983.

102. That as direct and proximate result of the constitutional abuses complained of herein, Mr. Michael Ortiz suffered severe emotional distress, trauma, humiliation, embarrassment, ridicule, scorn, and deprivation of his civil rights and freedom.

THIRD CAUSE OF ACTION

FALSE ARREST AND FALSE IMPRISONMENT PURSUANT TO 42. U.S.C. SECTION 1983, AGAINST DEFENDANT POLICE OFFICERS KAROLINA SCOTT, PINNOCK, AND LASPINA

103. That plaintiff repeats, reiterates and realleges each and every allegation contained in Paragraphs Numbered “1” through “ 102”, with the same force, and effect, as though more fully set forth at length herein.

104. That the false imprisonment, detention, and restriction of Plaintiff’s freedom, constituted a malicious act, and was a wanton and reckless degradation of the plaintiff’s liberty and freedom.

105. The common law tort of false arrest is a species of false imprisonment, and action derived from the ancient common- law action of trespass [that] protects the personal interest of freedom from restraint of movement.” **Singer v. Fulton County Sheriff**, 63 F. 3d 110, (2d Cir. 1995) (quoting **Broughton v. State of New York**, 37 N.Y. 2d at 93, 335 N.E 2d at 314.

106. That there are four elements of a false imprisonment claim: (1) the defendant intended to confine the plaintiff, (2), the plaintiff was conscious of the confinement, (3) the plaintiff did not consent to the confinement, and (4) the confinement was not otherwise privileged.” **Id.** The **Singer Court** also cited **Hygh v. Jacobs**, 961 F 2d 359, at 366 (“the elements of a claim of false arrest under section 1983 are substantially the same as the elements of a false arrest claim under New York Law.”

107. Plaintiff’s claim under section 1983 for false arrest recognizes the same state elements, but also rests on the right of the individual to be free from unreasonable seizures, including arrest without probable cause.

108. Mr. Ortiz was intentionally and unlawfully confined by the Defendants, police officers in that Plaintiff was sufficiently and significantly deprived of his liberty, and was not free to move, his liberty was severely restricted by the Defendant officers.

109. Plaintiff was conscious of defendant's illegal restraint and was well aware of the facts that he was being tormented by Officers Scott, Pinnock and LaSpina, without probable cause and without reasonable suspicion.

110. The officers lacked knowledge or reasonable trustworthy information sufficient to warrant a person of reasonable caution in the belief that Plaintiff had been engaged in an unlawful offense thus justifying Plaintiff's stop, frisk, detention, arrest and strip search.

111. As a direct and proximate cause of Defendants unlawful actions, Plaintiff was caused to have suffered harm and sever emotional stress, and loss of liberty.

**FOURTH CAUSE OF ACTION
AGAINST THE CITY OF NEW YORK FOR MUNICIPAL LIABILITY UNDER 42
U.S.C. SECTION 1983.**

112. That Plaintiff repeats, reiterates and realleges each and every allegation contained in Paragraphs Numbered"1 through "111" with the same force and effect as though more fully set forth at length herein.

113. That at all relevant times herein, Defendant City of New York, acting through its New York City Police Department developed, maintained, implemented, enforced, encouraged, and sanctioned de facto policies, practices and or customs exhibiting deliberate indifference to the Plaintiff's constitutional rights which caused the violation of such rights.

114. The Defendants unlawful actions were done willfully, knowingly and with specific intent and deliberate indifference to Plaintiff's constitutional rights under the Fourth and Fourteenth Amendments to the Constitution of the United States.

115. That the acts, omissions, and practices alleged herein constitute a pattern or practice of stopping and frisking members within the minority communities by the New York City Police Department including the 52nd police precinct which the Commissioner of the New York City Police Department was aware of such violations of the rights privileges and immunities of the Plaintiff which are secured or protected by the Constitution of the United States.

116. That the New York City Police Department's conduct amounted to a policy of deliberate indifference to Plaintiff's constitutional rights to be free from an unlawful stop, frisk, search and detention without reasonable suspicion and without probable cause.

117. That the law recognizes several ways in which a municipal policy can be set by a municipality to cause it to be liable under section 1983. 1) the explicit setting of a policy by the government that violates the Constitution, 2) the action of a policy makers within the government, 3) the adoption through a knowing failure to act by a policy maker of actions by his subordinates that are so consistent that they have become custom or 4) the failure of the government to respond to an obvious need for better training of its employees in such a manner as to show "deliberate indifference" to the risk that not addressing the need will result in constitutional violations.

118. That the Defendants knew or should have known of the deficiencies alleged herein and that the New York City Police Department's failure to supervise, or adequately train Defendants Scott, Pinnock and LaSpina who were directly involved in this incident, were

deliberately indifferent to the Plaintiff's Constitutional rights protected under the Fourth, and Fourteenth Amendments.

119. That the Defendants' deliberate indifference caused the violations of the constitutional rights alleged herein.

120. Defendant City of New York's tolerance of the New York City Police Department's practice of harassing young males of African and Hispanic descent by unlawfully stopping, frisking and searching them without individualized reasonable suspicion, constitutes a practice that, upon information and belief, is widespread and resulted in an impediment of Plaintiff's constitutional right.

121. The acts and omissions set forth herein were carried out by the aforementioned individual Defendants, and subordinates in their official capacity as police officers of the New York City Police Department pursuant to the customs, policies and practices, within the New York City Police Department under the supervision of Commissioner James P. O'Neil under color of state law.

122. That the failure to supervise train and or discipline the Defendant officers resulted in a custom, policy or practice that served as the moving force behind the constitutional violations suffered by Plaintiff Michael Ortiz.

123. As a direct and proximate result of the foregoing practices and customs, Plaintiff was injured without legal justification.

124. That the policy makers within the City of New York and the New York City Police Department including commissioner James O'Neil, knew or should have known that the policies in effect during the time of the Plaintiff's unlawful seizure and detention were being ignored, and that the Defendants were deliberately indifferent to Mr. Ortiz's constitutional rights.

125. The policy makers within the New York City Police Department had constructive knowledge of the foreseeable injuries to the Plaintiff as set forth above and failed to do anything to prevent the unconstitutional practices of its police officers.

126. Plaintiff's right to be free from arbitrary government actions including the right to be free from unreasonable search and seizure and false accusations which caused Plaintiff's injuries without legal justification, such rights were clearly established on December 28, 2017.

127. That the constitutional abuses, and violations by the City of New York through the actions of the Defendant officers and employees, were directly and proximately caused by policies, practices and customs developed, implemented, enforced, encouraged, and sanctioned by the Defendant, City of New York.

128. As consequence thereof, Plaintiff has been greatly injured.

FIFTH CAUSE OF ACTION
AGAINST DEFENDENT POLICE OFFICERS SCOTT, PINNOCK, AND LASPINA
FOR INTENTIONAL INFLICTION OF EMOTIONAL STRESS

129. That the plaintiff repeats, reiterates and realleges each and every allegation contained in Paragraphs Numbered "1" through "128" with the same force and effect as though more fully set forth at length herein.

130. That the Defendant police officers, agents, servants and/or employees, engaged in actions intended to inflict emotional trauma on the Plaintiff.

131. That by reason of the foregoing, the Plaintiff has suffered mental and emotional distress due to Defendants unlawful and reckless actions as more fully described herein.

132. Plaintiff's claim for the Intentional Infliction of Emotional Distress was caused by the Defendant New York City Police officers who intentionally and without reason, privilege or

reasonable suspicion, caused Mr. Ortiz to be stopped, frisked, and searched without legal justification.

133. New York State Law for the Claim of Intentional Infliction of Emotional Distress is well established and recognized throughout the State of New York. The tort has four (4) elements; 1) extreme and outrageous conduct, 2), intent to cause severe emotional distress, 3), a causal connection between the conduct and the injury, and 4) severe emotional distress. **Howell v. New York Post Co.**, 81 N.Y. 2d 115, 121, 596 N.Y.2d 350, 353, 612 N.E. 2d 699, 702 (1993).

134. New York Court have recognized this claim when the conduct complained of “ is so outrageous and character and so extreme in degree as to go beyond all possible bounds of decency, and to be regarded as atrocious and utterly intolerable in a civilized society.” **Murphy v. American Home Products Corp.**, 58 N.Y. 2D 293, 303, 461 N.Y.S.2d 232 ,236, 448 N.E. 2d 867, 90 (1983).

135. The acts committed against the Plaintiff by the Defendant police officers were clearly intended to cause the Plaintiff extreme physical damage to his mind and body by willfully and deliberately failing to produce a surveillance video and failing to name the alleged victim who was allegedly assaulted by the Plaintiff on December 28, 2017.

136. That the officers intentionally placed Plaintiff in apprehension of fear and imminent harm and offensive contact by Defendants’ unlawful stop, frisk, and body cavity strip search and unprivileged confinement of the Plaintiff.

137. Plaintiff was caused to suffer serious emotional injuries directly and proximately caused by the Defendants for which Plaintiff now seeks compensation.

**AS AND FOR A SIXTH CAUSE OF ACTION AGAINST POLICE OFFICERS
SCOTT, PINNOCK, AND LASPINA FOR CONSPIRACY TO VIOLATE
PLAINTIFF'S CONSTITUTIONAL RIGHTS UNDER 42 U.S. C. SECTION 1983**

138. That the plaintiff repeats, reiterates and realleges each and every allegation contained in Paragraphs Numbered “ 1” through “137” with the same force and effect as though more fully set forth at length herein.

139. That the individual Defendants by their conduct did under color of law, conspire with one another to deprive Mr. Ortiz of his constitutional rights, including his right to be free from unreasonable search and seizure, false arrest and false imprisonment and from malicious prosecution.

140. That in furtherance of their conspiracy to cover up the Defendants illegal stop and frisk of the Plaintiff, the Defendants engaged in joint filing of a false narrative of the events which occurred on December 28, 2017, in that the Defendants willfully and intentionally created a misleading and incomplete police report charging Mr. Ortiz with the sale of narcotics.

141. That the Defendants knowingly arrested Plaintiff without probable cause and with the specific intent to incarcerate the Plaintiff.

142. That the Defendant police officers knowingly gave false statements to NYPD investigators and circulated false and defamatory information concerning Mr. Ortiz.

143. That as a proximate and direct result of Defendant's conduct Plaintiff suffered the injuries and damages describe above.

WHEREFORE, Plaintiff demands judgment and relief against Defendants jointly and severally as follows:

A. Awarding Plaintiff compensatory damages in an amount of \$ 675,000.

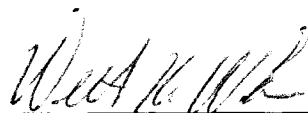
B. Awarding punitive damages to Plaintiff in the amount that would punish Defendant police officers for their willful, wanton, reckless and malicious misconduct alleged in this Complaint that would effectively deter Defendants from future civil rights violations and other unlawful behavior in an amount to be determined at trial.

C. An award to plaintiff of the costs and disbursements herein.

D. An award of reasonable attorney fees under 42 U.S.C. Section 1988.

E. Granting such other and further relief as this Court may deem just and proper.

Dated; January 27, 2018
New York, New York



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